FIRST AMENDMENT TO THE LEASE CONTRACT OF MARY GRACE CAFÉ

This First Amendment to the Lease Contract dated March 4, 2021 (**"First Amendment"**) is made and entered on JUL 19 2024 by and between:

MELCO RESORTS LEISURE (PHP) CORPORATION, a corporation duly organized and existing under and by virtue of the laws of the Republic of the Philippines, with principal office address at Asean Avenue cor. Roxas Boulevard, Brgy. Tambo, Parañaque City (**"LESSOR"**);

-and-

MARY GRACE FOODS, INC., a corporation duly organized and existing under and by virtue of the laws of the Republic of the Philippines, with principal office address at Lot 25 & 27 Marian Road 2 San Martin De Porres, Parañaque City, operating under the trade name **"Mary Grace Café"** (**"LESSEE"**).

(each of the LESSOR and LESSEE shall also be known as a **"Party"**, and collectively as the **"Parties"**)

WITNESSETH

WHEREAS, the LESSOR and the LESSEE executed the Lease Contract dated March 4, 2021 (**"Agreement"**) for the lease of a commercial space at City of Dreams Manila with Area Code 214-215 with an area of approximately Two Hundred Eighty-Five and 35/100 square meters (285.35 sqm) from March 15, 2021 to July 24, 2026.

WHEREAS, the Parties have agreed to execute this first amendment to reflect actual opening date of the lessee as the start date of the agreement.

NOW, THEREFORE, in consideration of the foregoing premises, the Parties hereby agree as follows:

1. The Parties acknowledge and agree that the opening date of the Lessee's operations for "Mary Grace" is June 11, 2022. As such, the Parties agree to revise the original lease period of the Agreement, from March 15, 2021 until July 14, 2026 to June 11, 2022 until June 10, 2027. (**"Updated Term"**)

2. The Parties further acknowledge and agree that there was a typographical error with regard to the name of the Lessee in the Agreement.

3. The Lessee acknowledge and agree that they are the Mary Grace Café Inc., referred to in the Agreement.

4. The parties now agree to correct the name of the Lessee from MARY GRACE CAFÉ INC., to MARY GRACE FOODS, INC.,

5. The Parties further agree to amend the schedule of rent found on Section 1 of the Agreement, in accordance with the changes indicated in the table below:

Monthly Rental Fee		
Item	**Period**	**Amount (PHP)**

Basic Rent	June 11, 2022 – June 10, 2023	PHP 900.00 per square meters
	June 11, 2023 – June 10, 2024	PHP 990.00 per square meters
	June 11, 2024 – June 10, 2025	PHP 1,089.00 per square meters
	June 11, 2025 – June 10, 2026	PHP 1,188.00 per square meters
	June 11, 2026 – June 10, 2027	PHP 1,306.80 per square meters
Percentage Rent	June 11, 2022 – June 10, 2027	Five percent (5%) of Gross Sales
Minimum Rent	June 11, 2022 – June 10, 2023	PHP 1,900.00 per square meters
	June 11, 2023 – June 10, 2024	PHP 2,090.00 per square meters
	June 11, 2024 – June 10, 2025	PHP 2,229.00 per square meters
	June 11, 2025 – June 10, 2026	PHP 2,528.90 per square meters
	June 11, 2026 – June 10, 2027	PHP 2,781.79 per square meters
Computation of Monthly Rental Fee: [Basic Rent + Percentage Rent] or Minimum Rent, whichever is higher.		

6. Section 4.3 shall also be updated and shall be amended in the following manner:

4.3. Pre-Termination

4.3.1. Either Party may terminate this Agreement without cause, provided a thirty (30) calendar day prior written notice is given to the other Party.

4.3.2. Should the Lessee pre-terminate this Agreement under Section 4.3.1, the Lessor shall be entitled to collect or retain the Monthly Rental Fees covering the unused or unexpired portion of the Lease Period. The Security Deposit referred to in Section 2.3.6 shall also be forfeited in favor of the Lessor.

4.3.3. Should the Lessor pre-terminate this Agreement under Section 4.3.1, the Lessee shall be entitled to a return of the Monthly Rental Fees already paid covering the unused or unexpired portion of the Lease Period. The Security Deposit referred to in Section 2.3.6 shall also be returned by the Lessor to the Lessee, less any and all liabilities that the Lessee may have with the Lessor.

4.3.4. Any termination of the Agreement shall be without prejudice to any rights or liabilities of either Party to the other Party which has accrued under this Agreement at the date of termination, or with respect to any rights or liabilities of either Party prior to the breach of the terms of the Agreement, whichever may be applicable.

7. All terms and conditions of the Agreement that are not expressly modified, supplemented, or deleted herein shall remain in full force and effect in accordance with their terms, and shall apply to all matters contained herein. Any defined terms in the Agreement shall have the same meanings when used herein, unless expressly modified herein. With respect only to the matters expressly covered by this Amendment, the terms and conditions of this Amendment shall supplement the Agreement and supersede any contradictory terms or conditions in the Agreement.

8. In case of any conflict in the wordings or interpretation of the terms and conditions of the various documents cited in the Agreement and this First Amendment, the order of precedence shall be as follows: (a) this First Amendment; and (b) the Agreement;

IN WITNESS WHEREOF, the Parties have caused this First Amendment to be executed by their authorized signatories on the date written below.

First Amendment to the Lease Contract for Mary Grace Café

MARY GRACE FOODS, INC.,

ADRIAN P. DIMACALI
Director

7 Jul. '24
Date of Signature

MELCO RESORTS LEISURE (PHP) CORPORATION

GEOFFRY ANDRES
Property President

JUL 13 2024
Date of Signature